

# Financial Administration Code, 2026

Budgets, the Finance and Audit Committee, reporting, audit, and Council remuneration

Draft for adoption by Council and ratification by the Electors | September 30, 2026

|              |                                                                                                                                                                                                                                                        |
|--------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Status       | Draft for adoption by Council Resolution and ratification by the Electors in a Ratification Vote.                                                                                                                                                      |
| Works with   | Spending and Contracts Code (Document 10), which sets spending authority, payments, and procurement. Council Procedure By-law (Document 06), sections 5 and 6. Customary Election Regulations, 2026 (Document 05), section 12.4 (Debts).               |
| Protected    | Amended only by Ratification Vote, except as section 28.2 permits.                                                                                                                                                                                     |
| Legal review | To be reviewed by legal counsel before adoption. If the First Nation is scheduled under the First Nations Fiscal Management Act, the Code may be adapted as a financial administration law for review by the First Nations Financial Management Board. |

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## **FINANCIAL ADMINISTRATION CODE OF THE FORT McMURRAY No. 468 FIRST NATION, 2026**

**WHEREAS** the Fort McMurray No. 468 First Nation has the inherent Aboriginal and Treaty right to govern its own affairs, including the management of its funds and assets, recognized and affirmed by section 35 of the *Constitution Act, 1982*; and

**WHEREAS** the funds and assets of the First Nation are held for the benefit of all its Members, and the Council owes the Members fiduciary obligations to manage them in a reasonable, transparent, and accountable manner; and

**WHEREAS** sections 5 to 8 of the *First Nations Financial Transparency Act*, S.C. 2013, c. 7, require the First Nation to prepare audited consolidated financial statements and a Schedule of Remuneration and Expenses of the Chief and Councillors, to provide copies to Members on request, and to publish them on an Internet site within one hundred and twenty (120) days after the end of each financial year and keep them accessible for at least ten (10) years; and

**WHEREAS** the Members are entitled to information about the revenue, spending, and investments of the First Nation, and to an independent review of how its funds are managed;

**NOW THEREFORE the Council of the Fort McMurray No. 468 First Nation adopts this Code, subject to ratification by the Electors:**

### **Part 1** **Interpretation and Application**

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#### **1 Short Title and Application**

- 1.1 This Code may be cited as the *Financial Administration Code of the Fort McMurray No. 468 First Nation, 2026*.
- 1.2 This Code applies to all funds, assets, and financial transactions of the First Nation, including funds held in trust for it. Part 9 applies to First Nation Business Entities.
- 1.3 Where this Code conflicts with a term of a funding agreement with a government or funding agency, the funding agreement prevails to the extent of the conflict, and the Finance Officer shall report the conflict to the Finance and Audit Committee.

## 2 Definitions

### 2.1 In this Code:

- (a) "Annual General Assembly" means the annual meeting of Members held under the Council Procedure By-law;
- (b) "Approved Budget" means the annual budget, including the capital plan, adopted under Part 4, as amended under section 12.6;
- (c) "Band Manager" means the senior employee of the First Nation responsible for its administration, however titled;
- (d) "Commitment" means any contract, purchase, grant, investment, loan, guarantee, or other obligation to pay money or transfer property;
- (e) "Committee" means the Finance and Audit Committee established under Part 3;
- (f) "Council" means the Chief and Councillors of the First Nation;
- (g) "Elector" has the meaning given in the Election Regulations;
- (h) "Election Regulations" means the Customary Election Regulations of the First Nation, as amended from time to time;
- (i) "Finance Councillor" means the Councillor holding the Finance and Audit Portfolio under the Election Regulations;
- (j) "Finance Officer" means the senior financial employee of the First Nation appointed under section 6;
- (k) "Financially Literate" means able to read and understand financial statements of a complexity comparable to those of the First Nation;
- (l) "First Nation" means the Fort McMurray No. 468 First Nation;
- (m) "First Nation Business Entity" has the meaning given in the Election Regulations;
- (n) "Fiscal Year" means the period from April 1 to March 31, or another period set by Resolution with at least ninety (90) days' notice to Members;
- (o) "Immediate Family" has the meaning given in the Election Regulations;
- (p) "Member" means a person whose name appears on the Membership List of the First Nation, whether the person lives on or off a Reserve;
- (q) "Ratification Vote" means a vote of the Electors in which a majority of the votes cast are in favour and at least twenty-five percent (25%) of the Electors on the List of Electors cast a ballot, held under the Election Regulations or the Community Votes and Petitions Code;
- (r) "Resolution" means a motion approved by a majority of the members of Council present at a duly convened meeting of Council at which a quorum is present, and recorded in a written Band Council Resolution; and
- (s) "Spending and Contracts Code" means the Spending and Contracts Code of the First Nation.

## **Part 2**

### **Roles and Responsibilities**

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#### **3 Council**

- 3.1 Council is responsible for the financial governance of the First Nation. Council shall approve budgets, Commitments, and financial policies only by Resolution, and no individual member of Council has authority to approve a payment or Commitment.
- 3.2 Council shall not direct the Finance Officer, the Committee, or the auditor on how to record, report, or audit any transaction.

#### **4 Finance Councillor**

- 4.1 The Finance Councillor shall oversee the budget process, financial reporting, and audit, serve as vice-chair of the Committee, and report to Council and Members at least quarterly.
- 4.2 The Finance Councillor shall not be a signing authority for payments, and shall not be a director of a First Nation Business Entity.

#### **5 Band Manager**

- 5.1 The Band Manager is responsible to Council as a whole for managing the operations of the First Nation within the Approved Budget and the authority set by the Spending and Contracts Code.

## **6 Finance Officer**

- 6.1 The First Nation shall employ or contract a Finance Officer who holds a Chartered Professional Accountant designation or equivalent training and experience, and who is not Immediate Family of any member of Council or of the Band Manager.
- 6.2 The Finance Officer shall:
- (a) keep complete and accurate books and records of all financial transactions in accordance with generally accepted accounting principles;
  - (b) prepare the draft budget and capital plan for Council, the Committee, and Members;
  - (c) confirm in writing that funds are available in the Approved Budget before any Commitment is made;
  - (d) ensure every payment is authorized under the Spending and Contracts Code, and refuse to process any payment that is not;
  - (e) prepare the quarterly and annual reports required by Part 6;
  - (f) issue statements of account and Debt Clearance Certificates as required by section 23 and the Election Regulations;
  - (g) apply the remuneration rules in section 16 of this Code, sections 5.4 and 5.5 of the Council Procedure By-law, and the Conduct and Conflict of Interest Code, without the need for a Resolution;
  - (h) act as the main contact for the auditor; and
  - (i) report to the Committee immediately, in writing, any transaction, instruction, or pattern that appears to breach this Code or the Spending and Contracts Code, whether or not the Finance Officer has reported it to the Band Manager or Council.
- 6.3 The Finance Officer shall not be disciplined, dismissed, or otherwise penalized for refusing to process an unauthorized payment or for reporting to the Committee in good faith, and is protected under the Whistleblower Protection Code. Any decision to dismiss the Finance Officer shall be reported to the Committee, with reasons, at least fourteen (14) days before it takes effect.

## **Part 3**

### **Finance and Audit Committee**

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#### **7 Composition**

- 7.1 There shall be a Finance and Audit Committee of five (5) voting members:
- (a) one (1) independent member who is a Chartered Professional Accountant, who shall chair the Committee;
  - (b) the Finance Councillor, who shall be vice-chair;
  - (c) one (1) other Councillor, selected by Resolution, who is not the Councillor holding the Economic Development, Lands and Resources Portfolio; and
  - (d) two (2) Members elected by the Electors at the Annual General Assembly for staggered two (2) year terms.
- 7.2 The independent member is appointed for a term of three (3) years by the two (2) members elected under paragraph 7.1(d), from among the persons who respond to a public call for applications posted for at least thirty (30) days. The appointment shall be reported to Council and published.
- 7.3 Where the Finance Councillor's Seat is vacant, Council shall select another Councillor to act in that position until the Seat is filled.

#### **8 Qualifications and Independence**

- 8.1 No member of the Committee shall be a signing authority for payments of the First Nation, an employee of the First Nation or a First Nation Business Entity, Immediate Family of the Band Manager or the Finance Officer, or a person who holds a contract worth more than ten thousand dollars (\$10,000.00) with the First Nation or a First Nation Business Entity.
- 8.2 The independent member and the members elected under paragraph 7.1(d) shall not be members of Council or Immediate Family of a member of Council. The independent member shall not be a Member.
- 8.3 At least three (3) voting members of the Committee shall be Financially Literate. Each member who is not a Chartered Professional Accountant shall complete financial literacy training approved by the chair within ninety (90) days after taking office.
- 8.4 Every member of the Committee is an Official under Part 7 of the Conduct and Conflict of Interest Code.

## **9 Duties**

### **9.1 The Committee shall:**

- (a) review and comment in writing on the draft budget and capital plan before adoption;
- (b) review each quarterly report before publication, and publish its written comments with the report;
- (c) review every Commitment over one hundred thousand dollars (\$100,000.00) before Council decides it, and every matter requiring approval of the Electors under Part 5;
- (d) recommend the auditor to the Electors, approve the audit plan, meet with the auditor without Council or Administration present at least once each year, and receive the auditor's management letter;
- (e) receive and decide financial complaints from Members under section 24;
- (f) receive reports from the Finance Officer under paragraph 6.2(i), and from employees under the Spending and Contracts Code;
- (g) review the internal controls of the First Nation each year and report on them;
- (h) recommend the schedule of remuneration and expenses for members of Council under section 18; and
- (i) present an annual written report to Members at the Annual General Assembly.

## **10 Powers and Independence**

- 10.1 The Committee may require the Band Manager, the Finance Officer, any employee, and any member of Council to provide any financial record, and may require any of them to attend a meeting of the Committee. The records shall be provided within fourteen (14) days.
- 10.2 The First Nation shall provide the Committee with a budget, set as a separate line in the Approved Budget, sufficient to carry out its duties, including the cost of independent advice.
- 10.3 Council shall not interfere with, dismiss, or obstruct the Committee or any of its members. A member elected under paragraph 7.1(d) may be removed only by a majority of Electors voting at an Annual General Assembly or Special Meeting. The independent member may be removed only by the Appeals Panel for incapacity, conflict of interest, or misconduct, after notice and a hearing.
- 10.4 The Committee may declare vacant the position of any member, other than a member of Council, who misses three (3) consecutive meetings without reason. A vacancy in an elected position shall be filled at the next Annual General Assembly, and a vacancy in the independent position under section 7.2.
- 10.5 The Committee shall report any obstruction to Members and to the Integrity Commissioner.

## **11 Meetings**

- 11.1 The Committee shall meet at least once each quarter. A quorum is three (3) members, at least two (2) of whom are not members of Council.
- 11.2 The Committee shall keep minutes, which shall be published within twenty-one (21) days after each meeting, excluding personal information about an identifiable Member or employee.

## **Part 4**

### **Budget and Capital Plan**

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#### **12 Preparing and Adopting the Budget**

- 12.1 Before the start of each Fiscal Year, Council shall adopt by Resolution an annual budget for the First Nation and a five (5) year capital plan.
- 12.2 The draft budget and capital plan shall be published on the website of the First Nation and made available at each band office at least thirty (30) days before adoption, and shall be presented at a community meeting held on a Reserve with a way for Members to attend and ask questions online.
- 12.3 Members may submit written comments on the draft to the Committee up to fourteen (14) days before adoption. Council shall consider the comments and the Committee's written review before adoption, and shall respond in writing to each recommendation of the Committee.
- 12.4 The adopted budget and capital plan shall be published within seven (7) days after adoption.
- 12.5 If a budget has not been adopted by the start of the Fiscal Year, spending may continue at no more than the level of the previous Fiscal Year's Approved Budget, month by month, for no more than ninety (90) days, and no new program, position, or capital project may be started.
- 12.6 Council may amend the Approved Budget by Resolution. An amendment that moves or adds more than twenty-five thousand dollars (\$25,000.00) shall be reported to the Committee before it is made and published within fourteen (14) days after it is made.

## Part 5

### Matters Requiring Approval of the Electors

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#### 13 Approval of the Electors

- 13.1 The following require a Resolution, review by the Committee, publication of the full proposal and the Committee's review at least thirty (30) days before the vote, and approval of the Electors in a Ratification Vote:
- (a) any single Commitment, or series of related Commitments, over five hundred thousand dollars (\$500,000.00) that is not included in the Approved Budget or the capital plan;
  - (b) borrowing money, or giving a guarantee or indemnity, where the new borrowing or guarantees in the Fiscal Year would exceed five hundred thousand dollars (\$500,000.00) in total;
  - (c) selling, transferring, or encumbering any asset of the First Nation, or any interest in a First Nation Business Entity, with a value over five hundred thousand dollars (\$500,000.00);
  - (d) investing more than one million dollars (\$1,000,000.00) in any single business or equity interest;
  - (e) adopting or changing any policy for per capita distributions to Members;
  - (f) forgiving any loan or other amount owed to the First Nation, other than writing off an amount the Committee certifies in writing as uncollectible; and
  - (g) the schedule of remuneration of members of Council under section 18.
- 13.2 Nothing in this section replaces any vote required by the *Indian Act* or by the terms of a trust, and where such a vote is required, both requirements shall be met.

## **Part 6**

### **Financial Reporting**

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#### **14 Quarterly Reports**

- 14.1 Within forty-five (45) days after the end of each quarter of the Fiscal Year, a plain-language quarterly report shall be published showing:
- (a) revenue received by source, including government transfers, own-source revenue, First Nation Business Entities, and each agreement under section 21.1;
  - (b) spending by program and category, compared with the Approved Budget, with an explanation of any variance over ten percent (10%);
  - (c) contracts awarded over ten thousand dollars (\$10,000.00) during the quarter;
  - (d) emergency Commitments and Commitments made without competition under the Spending and Contracts Code;
  - (e) total spending on each payment card of the First Nation;
  - (f) the remuneration and expenses of each member of Council under section 19.2; and
  - (g) the comments of the Committee.

#### **15 Annual Financial Statements**

- 15.1 The First Nation shall prepare, for each Fiscal Year, audited consolidated financial statements in accordance with generally accepted accounting principles, a Schedule of Remuneration and Expenses of the Chief and each Councillor paid by the First Nation and by any entity required to be consolidated with it, and the auditor's reports on them, as sections 5 and 6 of the *First Nations Financial Transparency Act* require.
- 15.2 These documents shall be published on the website of the First Nation within one hundred and twenty (120) days after the end of the Fiscal Year, shall remain available there for at least ten (10) years, and shall be provided free of charge to any Member on request.
- 15.3 The published statements shall be accompanied by a plain-language summary of no more than two (2) pages.

## **16 Consequences of Late Reporting**

- 16.1 No remuneration is payable to any member of Council for any period during which:
- (a) the documents required by section 15.2 have not been published after the one hundred and twentieth (120th) day following the end of the Fiscal Year;
  - (b) a quarterly report required by section 14.1 has not been published after the forty-fifth (45th) day following the end of the quarter; or
  - (c) the Annual General Assembly has not been held after the one hundred and fiftieth (150th) day following the end of the Fiscal Year.
- 16.2 Remuneration for a period described in section 16.1 does not become payable when the default is later corrected.
- 16.3 Section 16.1 does not apply to a period for which the Committee certifies in writing that the delay was caused solely by the auditor, a government, or an event outside the control of the First Nation, and not by any act or omission of Council or Administration.
- 16.4 The Finance Officer shall apply this section without the need for a Resolution, and shall report each period to which it applied in the Schedule of Remuneration and Expenses.

## **Part 7**

### **Audit**

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#### **17 Auditor**

- 17.1 The auditor shall be appointed each year by a majority of Electors voting at the Annual General Assembly, on the recommendation of the Committee. If no appointment is made, Council shall appoint the auditor recommended by the Committee.
- 17.2 The auditor shall be independent, shall be a member in good standing of a provincial body of professional accountants as subsection 5(2) of the *First Nations Financial Transparency Act* requires, shall hold no other contract with the First Nation or a First Nation Business Entity, and no firm shall audit the First Nation for more than five (5) consecutive years.
- 17.3 The auditor shall have access to all records, accounts, and persons of the First Nation, and may report directly to the Committee.
- 17.4 A summary of the auditor's management letter, and of the response of Administration, shall be presented at the Annual General Assembly.

## **Part 8**

### **Remuneration and Expenses of Council**

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#### **18 Remuneration Schedule**

- 18.1 The salaries, honoraria, and benefits of the Chief and Councillors shall be set out in a schedule recommended by the Committee and approved by the Electors at an Annual General Assembly or in a Ratification Vote.
- 18.2 The schedule shall state the deduction for each unexcused absence required by section 5.4 of the Council Procedure By-law.
- 18.3 A change to the schedule that increases remuneration takes effect only for terms beginning after the next General Election for the affected Seats.
- 18.4 No member of Council shall receive any remuneration, bonus, severance, or benefit from the First Nation or a First Nation Business Entity other than as set out in the approved schedule.

#### **19 Travel and Expenses**

- 19.1 Travel and expenses of members of Council shall be paid only under a written travel policy adopted by Resolution, on original receipts, and at rates no higher than those in the policy.
- 19.2 The remuneration, per diems, travel, and other expenses of each member of Council shall be published each quarter in the quarterly report, and each year in the Schedule of Remuneration and Expenses.

## **Part 9**

### **Business Entities and Revenue**

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#### **20 Business Entities**

- 20.1 Council shall publish a list of every First Nation Business Entity, showing its ownership, its directors, and the persons who appoint them.
- 20.2 Each First Nation Business Entity shall provide to Council and the Committee, within one hundred and twenty (120) days after the end of its fiscal year, audited or reviewed financial statements and a report on its revenue, profit, and payments to the First Nation. A plain-language summary shall be published with the First Nation's annual report.
- 20.3 The Business Ventures and Member Loans Code governs the governance of First Nation Business Entities and member loan programs.

#### **21 Reporting of Revenue**

- 21.1 Revenue from equity, impact benefit, and resource agreements shall be reported separately in each quarterly and annual report, showing the amount received from each agreement, where the terms of the agreement permit, and how it was used or invested.

## **Part 10**

### **Advances and Amounts Owed**

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#### **22 Advances**

- 22.1 No loan, advance, or guarantee shall be given to a member of Council, other than a travel advance under the travel policy, which shall be accounted for within thirty (30) days after the travel ends.
- 22.2 An advance to an employee shall not exceed one pay period and shall be recovered within three (3) months.
- 22.3 Loans to Members are made only under the Business Ventures and Member Loans Code.

#### **23 Amounts Owed by Members**

- 23.1 No amount may be claimed from a Member as owing to the First Nation unless it is based on a written agreement signed by the Member, a judgment or order of a court or tribunal, or an invoice or demand authorized by a Resolution made before the invoice or demand was issued.
- 23.2 Any Member may request a statement of any amount the First Nation claims the Member owes, and the Finance Officer shall provide it within fourteen (14) days, showing the basis of the claim.
- 23.3 A Member who disputes an amount may ask the Committee to review it. The Committee shall decide within thirty (30) days, and no collection step shall be taken while the review is pending.
- 23.4 No amount claimed from a Member may be deducted from a per capita distribution, a program benefit, or a payment under a Treaty except under a written agreement signed by the Member or a court order.

## **Part 11**

### **Member Rights, Conflicts, and Breaches**

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#### **24 Rights of Members and Complaints**

- 24.1 Every Member has the right to:
- (a) read every report, schedule, and register this Code requires to be published;
  - (b) request financial records under the Access to Information and Privacy Code;
  - (c) file a written financial complaint with the Committee and receive a written decision with reasons within thirty (30) days; and
  - (d) take any complaint about the conduct of a member of Council to the Integrity Commissioner.
- 24.2 No person may deny a Member access to any document this Code designates as public. Nothing in this Code limits the right of a Member under section 10 of the *First Nations Financial Transparency Act*, or of any person under section 11 of that Act, to apply to a superior court for an order requiring the documents required by that Act to be provided or published.

#### **25 Conflicts of Interest**

- 25.1 A member of Council, the Band Manager, the Finance Officer, a member of the Committee, or an employee who has a personal financial interest in a matter under this Code shall disclose it in writing to the Finance Officer and the Committee as soon as it is known, shall take no part in the matter, and shall not attempt to influence it, as the Conduct and Conflict of Interest Code requires.

#### **26 Breaches**

- 26.1 A breach of this Code by a member of Council is a breach of the Conduct and Conflict of Interest Code and may be the subject of a complaint to the Integrity Commissioner.
- 26.2 A breach of this Code by an employee is grounds for discipline, up to and including dismissal, under the Administration and Personnel Code.
- 26.3 Where there are reasonable grounds to believe a breach involves theft or fraud, the Committee shall refer the matter to the police.

## **Part 12**

### **Amendment and Coming into Force**

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#### **27 Protected Document**

27.1 This Code is a protected Document. Council may not suspend any provision of it.

#### **28 Amendment**

28.1 This Code may be amended only with the approval of the Electors in a Ratification Vote, after the proposed amendment has been published to Members for at least thirty (30) days and the Committee has reviewed it and commented in writing.

28.2 Council may amend this Code by Resolution, without a vote of the Electors, only to add to any publication or reporting requirement, add to the rights of Members, lower a dollar threshold, or add to the powers of the Committee, after thirty (30) days' published notice.

## **29 Coming into Force and Transition**

- 29.1 This Code comes into force on the date of the Resolution adopting it, and shall be published on the website of the First Nation within seven (7) days.
- 29.2 Council shall put this Code to the Electors for ratification within twelve (12) months after it comes into force.
- 29.3 Within ninety (90) days after this Code comes into force, Council shall hold a Special Meeting of Electors to elect the first two (2) members under paragraph 7.1(d), one (1) of whom shall serve an initial term of one (1) year so that terms are staggered. Until the Committee is formed, the functions of the Committee shall be performed by the auditor of the First Nation to the extent the auditor agrees.
- 29.4 The first schedule of remuneration under section 18.1 shall be presented to the Electors at the first Annual General Assembly after this Code comes into force. Until then, remuneration continues at the rates in effect on the date this Code comes into force, and no increase may be made.
- 29.5 Where the Election Regulations in force do not provide for a Finance and Audit Portfolio, the Councillors described in paragraphs 7.1(b) and (c) shall be two (2) Councillors selected by Resolution, and the Committee shall choose its vice-chair.

### **Adopted by Council**

Resolution No. and date

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Signature of Chief

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Signature of Councillor

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### **Ratified by the Electors**

Date of vote and votes for / against / total  
Electors on the List

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Signature of the Electoral Officer

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# Explanatory Notes

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## 1. Purpose

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This Code sets rules for budgets, the Finance and Audit Committee, matters that require approval of the Electors, financial reporting, audit, Council remuneration, and amounts claimed from Members. Spending authority, payments, payment cards, and procurement are in the Spending and Contracts Code (Document 10). These notes are not part of the Code.

## 2. Adoption

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- Council adopts the Code by Resolution. It comes into force on the date of the Resolution (section 29.1).
- The Electors ratify it within twelve months (section 29.2). After that, amendments require a Ratification Vote, except amendments that only add controls or reporting (section 28).
- If the First Nation is scheduled under the First Nations Fiscal Management Act, the Code may be adapted as a financial administration law under section 9 of that Act, which requires review by the First Nations Financial Management Board. The Committee is structured to be consistent with the Board's standards: at least three members, at least two Councillors, a Councillor as vice-chair, members independent of day to day financial management, and a majority who are financially literate.

## 3. Key provisions

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- Finance and Audit Committee of five: an independent Chartered Professional Accountant as chair, the Finance Councillor as vice-chair, one other Councillor, and two Members elected at the Annual General Assembly (section 7).
- No Committee member may be a signing authority (section 8.1).
- Approval of the Electors for unbudgeted Commitments over \$500,000, borrowing over \$500,000 in a year, disposal of assets over \$500,000, investments over \$1,000,000, per capita distribution policy, loan forgiveness, and Council remuneration (section 13).
- Quarterly reports within 45 days and audited statements within 120 days (sections 14, 15).
- Remuneration is not payable to members of Council while the audit, a quarterly report, or the Annual General Assembly is overdue, unless the delay was outside their control (section 16).
- Remuneration increases apply only after the next General Election (section 18.3).
- Amounts claimed from Members must rest on a signed agreement, a court order, or a Resolution made before the claim. No deduction from per capita, program, or Treaty payments without consent or a court order (section 23).

## 4. Relationship to the 2014 documents

| 2014 provision                        | 2014 content                                                 | 2026 Code                                                                                                     |
|---------------------------------------|--------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------|
| By-law No. 2014.2, s. 7.1             | General duties of prudent financial management               | Specific roles, reporting deadlines, audit, and approval of the Electors (Parts 2 to 7)                       |
| By-law No. 2014.2, s. 4.1(g)          | Audit report provided to Members on request                  | Audited statements published within 120 days and kept online for ten years (15)                               |
| Regulations 2014, ss. 8.3(c), 8.12(c) | Candidates ineligible for "other debts," confirmed by letter | Amounts owed must rest on an agreement, order, or prior Resolution. Statements of account within 14 days (23) |

## 5. Legal sources and reference models

| Source                                                                           | Provision                                                                                                          |
|----------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------|
| First Nations Financial Transparency Act, ss. 5, 6                               | Audited consolidated financial statements. Schedule of Remuneration and Expenses with an auditor's report          |
| First Nations Financial Transparency Act, ss. 7, 8                               | Copies to members on request. Publication on an Internet site within 120 days, accessible for at least 10 years    |
| First Nations Financial Transparency Act, ss. 10 to 13                           | Court applications by members or any person. Administrative measures by the Minister                               |
| First Nations Fiscal Management Act, s. 9                                        | Financial administration laws of scheduled First Nations, reviewed by the First Nations Financial Management Board |
| First Nations Financial Management Board, Financial Administration Law Standards | Reference model for the finance and audit committee, budget, reporting, and internal controls                      |

## 6. Records required before adoption

- Existing finance policies, signing authority Resolutions, and travel policy.
- Whether the First Nation is scheduled under the First Nations Fiscal Management Act.
- The current remuneration of the Chief and Councillors, for section 29.4.